

SENATE No. 1767

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the expansion of the state DNA database.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 1767

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 1767) of Bruce E. Tarr for legislation to expand the state DNA database. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1587 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the expansion of the state DNA database.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 22E of the General Laws is hereby amended by
2 striking the section in its entirety and inserting in place thereof the following:-

3 Section 3. (a) Any person who is convicted of an offense that is punishable by
4 imprisonment in the state prison and any person adjudicated a youthful offender by reason of an
5 offense that would be punishable by imprisonment in the state prison if committed by an adult
6 shall submit a DNA sample to the department within 6 months of such conviction or adjudication
7 or, if incarcerated, within the first 6 months of such incarceration or before release from custody,
8 whichever occurs first.

9 (b) Any person who is arrested by virtue of process, or is taken into custody by an officer
10 and charged with the commission of: (i) an offense listed in clause (i) of subsection (b) of section

25 of chapter 279; or (ii) section 17 or section 18 of chapter 266, and who upon arrest has been arraigned pursuant to the applicable court rules under the Massachusetts Rules of Criminal Procedure, shall submit a DNA sample to the department.

(c) The trial court and probation department shall work in conjunction with the director to establish and implement a system for the electronic notification to the department whenever a person is required to submit a DNA sample under this section. The sample shall be collected by a person authorized under section 4 of this chapter subsequent to arraignment, in accordance with regulations or procedures established by the director. The results of such sample shall be made part of the state DNA database. In the event the department is unable to complete DNA analysis on a sample provided pursuant to this section or any sample so provided fails to yield a DNA record, the person required to submit a DNA sample pursuant to this section shall, within 6 months of notice from the director, submit additional DNA samples until DNA analysis is completed and results in the production of a DNA record. The submission of such DNA sample shall not be stayed pending a sentence appeal, motion for new trial, appeal to an appellate court or other post conviction motion or petition.

SECTION 2. Section 5 of chapter 22E of the General Laws is hereby amended by striking the section in its entirety and inserting in place thereof the following:-

Section 5. The department shall provide all collection materials, labels and instructions for the collection of DNA samples pursuant to this chapter.

SECTION 3. Section 11 of chapter 22E of the General Laws is hereby amended by striking the section in its entirety and inserting in place thereof the following:-

Section 11. Any person required to provide a DNA sample pursuant to this chapter and who, after notice, fails to provide such DNA sample or such additional DNA samples as required by section 3 shall be subject to punishment by a fine of not more than \$2,000 or imprisonment in a jail or house of correction for not more than six months or both for each such offense. Each day a person fails, as required by section 3, to submit a DNA sample shall, until such DNA sample is so provided, constitute a separate offense.

SECTION 4. Section 12 of chapter 22E of the General Laws is hereby amended, in line 6, by striking out the figure “\$1,000” and inserting in its place thereof the following figure:- “\$2,000”; and is hereby further amended, in line 7, by striking out the words “six months” and inserting in place thereof the following:- 1 year.

SECTION 5. Section 13 of chapter 22E of the General Laws, as appearing in the 2014 official edition, is hereby amended by striking, in line 4, the figure “\$1,000” and inserting in its place thereof the following:- “\$2,000”; and is hereby further amended, in line 5, by striking the words “six months” and inserting in place thereof the following:- 1 year.

SECTION 6. Section 15 of chapter 22E of the General Laws is hereby amended by adding the following subsections:-

(b) The department shall destroy the DNA sample and any records of a person related to the sample that were taken in connection with a particular alleged designated crime if the sample was collected post-arraignment under subsection (b) of section 3, and any of the following occurs: the felony charge which required the DNA sample is downgraded to a misdemeanor by the prosecuting attorney upon a plea agreement or the person is convicted of a lesser offense that is a misdemeanor other than one constituting abuse as defined in section 1 of chapter 209A or a

sex offense for which registration is required pursuant to sections 178C to 178P of chapter 6; (ii) the person is acquitted after a trial of the charges which required the taking of the DNA sample; or (iii) the charges which required the taking of the DNA sample are dismissed by either the court or the state after arraignment unless good cause is shown why the sample should not be destroyed.

(c) If the person has more than one entry in the state DNA database, CODIS, or the state DNA data bank, only the entry related to the dismissed case shall be deleted.

(d) The trial court and probation department shall work in conjunction with the director to establish and implement a system for the electronic notification to the department whenever a DNA sample is required to be destroyed pursuant to this section. The department shall notify the person upon destroying the DNA sample and completing its responsibilities under this subsection.

(e) If a DNA sample is matched to another DNA sample during the course of a criminal investigation, the record of the match shall not be expunged even if the sample itself is expunged in accordance with the provisions of this section.